

COUNTY COURT : COUNTY OF MONROE
STATE OF NEW YORK

PEOPLE OF THE STATE OF NEW YORK,

-against-

JEFFREY BERNECKY,

Respondent.

Index No. [_____]

NYSID No. OS6430

Hearing Date: September 11, 2026, 11:30 a.m.

Before: Hon. Karen Bailey Turner, J.C.C.

CERTIFICATION OF JEFFREY BERNECKY

(Pursuant to CPLR 2106)

Jeffrey Bernecky, appearing pro se, certifies as follows:

1. I am the Respondent in this proceeding. I make this certification in support of my Memorandum of Law in Support of Respondent's Position, submitted in connection with the risk-level classification hearing scheduled for September 11, 2026. I have personal knowledge of the facts stated below, except where I state otherwise.

2. I was the defendant in both of the federal criminal proceedings referenced in my Memorandum of Law: *United States v. Bernecky*, No. 6:11-CR-06045 (W.D.N.Y.), and *United States v. Bernecky*, No. 6:18-CR-06018 (W.D.N.Y.). The documents identified below as Exhibits A, B, C, and E are filings from those two case dockets, which I obtained from my own case files and records and which I recognize as true and correct copies of the documents they purport to be.

3. **Exhibit A.** Annexed hereto as Exhibit A is a true and correct copy of the Government's Supplemental Sentencing Statement, filed January 13, 2012, in Docket No. 6:11-CR-06045, Doc. 24 (W.D.N.Y.).

4. **Exhibit B.** Annexed hereto as Exhibit B is a true and correct copy of the Amended Sentencing Statement, filed May 29, 2018, in Docket No. 6:18-CR-06018, Doc. 24 (W.D.N.Y.).

5. **Exhibit C.** Annexed hereto as Exhibit C is a true and correct copy of the Government's Statement with Respect to Sentencing Factors, filed April 24, 2018, in Docket No. 6:18-CR-06018, Doc. 18 (W.D.N.Y.).

6. **Exhibit D.** Annexed hereto as Exhibit D is a true and correct copy of Bureau of Prisons Program Statement 1351.05, *Release of Information* (as amended), a publicly available policy document of the United States Department of Justice, Federal Bureau of Prisons, governing, among other things, an inmate's access to and possession of his own presentence investigation report. I served terms of imprisonment in Bureau of Prisons custody under both of the federal judgments referenced above and was personally subject to this policy during that custody.

7. **Exhibit E.** Annexed hereto as Exhibit E is a true and correct copy of my Defendant's Sentencing Memorandum, filed January 6, 2012, in Docket No. 6:11-CR-06045, Doc. 23 (W.D.N.Y.), submitted on my behalf by my then-counsel, Adrian J. Burke, Esq.

8. At my prior New York State SORA risk-level classification hearing before this Court in 2016 — the proceeding that resulted in my Level Two classification, later affirmed on appeal in *People v. Bernecky*, 161 A.D.3d 1540 (4th Dep't 2018), lv denied, 32 N.Y.3d 901 (2018) — the counsel assigned to represent me appeared for the first time on the day of the hearing itself, with no advance opportunity to meet with me, review my case, or prepare. That same counsel later filed the appeal that became the Fourth Department's 2018 decision without my knowledge or consent. I state this from my own personal recollection of that proceeding. I am not aware of any docket entry or other record in this matter's files that independently documents it, and I offer it here as my own account, not as an adjudicated fact.

9. The Case Summary attributes to me, citing an unidentified document from my initial entry into the Bureau of Prisons, a report that I used hallucinogens, rarely, during the year before my arrest in my first case. I deny this attribution completely. I did not make that report, and I have never used hallucinogens. I make this denial based on my own personal knowledge of what I have and have not used and reported.

10. The Case Summary describes, using the label "sexual contact," two incidents from when I was a minor and a teenager: in 2005, when I was sixteen, on a day-camp bus, a 9-year-old child tried to sit on my lap; and in 2007, when I was eighteen, at an after-school program, a 12-year-old child sat down on my back. I disclosed both of these incidents myself, years later, to my own treatment providers, as part of my own treatment engagement — neither was detected or reported by any parent, employer, or child at the time, and neither resulted in any charge, arrest, or allegation of wrongdoing when it occurred. I did not initiate, arrange, or seek out either incident; each was a child climbing onto me during ordinary camp or after-school activity, not conduct I directed toward either child. I dispute that "sexual contact" accurately describes either incident as I disclosed it. That label was applied by the Case Summary, not by me, and I make this statement based on my own personal knowledge of what happened and what I disclosed, in both instances.

11. I submit this certification, including the statements above, and Exhibits A through E annexed to it, in support of my Memorandum of Law and my position that I should not be classified a Level Three sex offender.

I affirm this ____ day of _____, 2026, under the penalties of perjury under the laws of New York, which may include a fine or imprisonment, that the foregoing is true, and I understand that this document may be filed in an action or proceeding in a court of law.

Jeffrey Bernecky

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